

SENATE BILL 2119

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 36
and Title 37, relative to parental rights.

WHEREAS, the purpose of this act is to restore, safeguard, and enforce the fundamental constitutional protections afforded to parents and children in proceedings involving state-initiated family separation, including dependency, neglect, abuse, custody deprivation, and termination of parental rights, by ensuring that such proceedings are conducted in strict compliance with due process, evidentiary fairness, and constitutional neutrality; and

WHEREAS, it is the intent of the General Assembly that:

(1) Parental rights and family integrity are fundamental liberty interests protected by the Constitution of the United States and the Constitution of this State, and may not be abridged absent the highest procedural safeguards recognized in American jurisprudence;

(2) State-initiated separation of a child from a parent constitutes a deprivation of liberty, requiring rigorous judicial scrutiny, meaningful adversarial process, and proof sufficient to justify the permanent or long-term disruption of the parent-child relationship;

(3) Proceedings that may result in permanent or prolonged family separation are not civil in nature for constitutional purposes, but are quasi-criminal in effect due to the severity and irreversibility of the liberty interests at stake;

(4) Evidentiary standards, procedural shortcuts, or administrative practices that prioritize expediency, compliance metrics, or financial reimbursement over constitutional protections are incompatible with due process and equal protection guarantees, and undermine public confidence in the justice system;

(5) Federal and state funding structures shall not distort judicial neutrality, incentivize family separation, or create institutional conflicts of interest that compromise impartial decision-making in cases involving parental rights;

(6) Children possess a fundamental interest in the care, custody, and companionship of their parents, and the protection of parental rights is inseparable from the protection of children's constitutional and developmental interests;

(7) The State bears the burden of proof at all times in any proceeding seeking to remove a child from a parent or to terminate parental rights, and such burden shall be met only through lawful, admissible, and reliable evidence subjected to meaningful adversarial testing; and

(8) This act shall be construed broadly to protect constitutional liberties, and narrowly against any interpretation that would permit arbitrary, unjustified, or financially motivated interference with the parent-child relationship; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 1, is amended by adding the following new part:

37-1-1001. Short title.

This part is known and may be cited as the "Parental Rights Protection Act."

37-1-1002. Construction.

This part must be liberally construed to effectuate its remedial and protective purposes, and any ambiguity must be resolved in favor of preserving parental rights, family integrity, and constitutional due process.

37-1-1003. Definitions.

As used in this part, unless the context clearly requires otherwise:

(1) "Adjudication":

(A) Means a formal judicial determination, following notice and a meaningful evidentiary hearing, that specific allegations against a parent or legal guardian have been proven by the required burden of proof, and that such findings are supported by admissible evidence subjected to cross-examination; and

(B) Does not include preliminary hearings, shelter care hearings, ex parte proceedings, status conferences, or dispositional reviews;

(2) "Beyond a reasonable doubt" has the commonly understood meaning of the term in constitutional jurisprudence; however, where this part requires proof beyond a reasonable doubt, no lesser standard shall suffice;

(3) "Child" means a person under eighteen (18) years of age;

(4) "Clear and convincing evidence" has the commonly understood meaning of the term in constitutional jurisprudence;

(5) "Emergency removal" means the temporary physical removal of a child from a parent or legal guardian without prior judicial authorization, based solely on sworn, particularized facts demonstrating an imminent and substantial risk of serious physical harm that cannot be mitigated by less restrictive means. Speculative harm, generalized risk assessments, poverty, or predictive neglect do not constitute an emergency;

(6) "Family integrity" means the fundamental constitutional interest of parents and children in the care, custody, companionship, and management of the parent-child relationship, free from unwarranted state interference;

(7) "Federal financial incentive" means any reimbursement, grant, performance payment, bonus, or fiscal benefit, whether direct or indirect, available to a state, county, court, agency, contractor, or provider contingent

upon, correlated with, or enhanced by the removal, placement, supervision, treatment, or termination of parental rights involving a child;

(8) "Neutral decision-maker" means a judicial officer or adjudicatory body that is independent, impartial, and free from institutional, financial, or political conflicts of interest, including any interest arising from federal or state funding incentives tied to case outcomes;

(9) "Parent" means a biological parent, adoptive parent, or legal guardian whose parental rights have not been lawfully terminated following an adjudication that complies with this part;

(10) "Proceeding" means any judicial, administrative, or quasi-judicial action initiated by the state or its agents that may result in the removal of a child, restriction or suspension of parental custody or visitation, imposition of compulsory services, or termination of parental rights;

(11) "Removal" means any state-initiated action that results in a child being physically separated from a parent or legal guardian, or that substantially restricts a parent's care, custody, or control of the child, whether temporary or permanent;

(12) "State" means this state and any political subdivision thereof, including but not limited to courts, departments, agencies, officers, employees, contractors, service providers, guardians ad litem, court-appointed attorneys, or any person acting under color of state law; and

(13) "Termination of parental rights" or "TPR" means any judicial or administrative action that permanently severs, extinguishes, or substantially destroys the legal relationship between a parent and a child, including actions

denominated as permanent guardianship, permanent custody, or any functional equivalent thereof.

37-1-1004. Burden of proof and standard of evidence.

(a) In any proceeding initiated by the state that seeks or may result in the removal of a child from a parent, restriction or suspension of parental custody or visitation, or termination of parental rights, the state bears the burden of proof at all times.

(b) An order resulting in the permanent termination of parental rights, permanent transfer of custody, or permanent state conservatorship shall not be entered unless the state proves, beyond a reasonable doubt, each of the following elements:

- (1) That the court has lawful jurisdiction over the parent and the child;
- (2) That the factual allegations justifying state intervention are true;
- (3) That the alleged conduct constitutes legally cognizable grounds for termination under state law; and
- (4) That termination is necessary to prevent serious and specific harm that cannot be remedied by less restrictive means.

(c) The burden of proof set forth in subsection (b) applies to any action that functions as a termination of parental rights, regardless of nomenclature, including, but not limited to, permanent guardianship, permanent custody, no-contact orders, orders suspending, denying, or cancelling parental visitation, or any other disposition or restraint that substantially, indefinitely, or irreversibly severs or extinguishes the parent-child relationship in whole or in part.

(d) A court shall not rely upon a preponderance of the evidence, clear and convincing evidence, or any lesser evidentiary standard to support an order described in

subsection (b). Any order entered in violation of this subsection (d) is voidable as a matter of law.

(e) In an emergency removal proceeding, the state bears the burden of demonstrating, by clear and convincing evidence, that an imminent and substantial risk of serious physical harm exists and that immediate removal is the least restrictive means available. This subsection (e) does not relieve the state of its obligation to satisfy the heightened standard required under subsection (b) prior to any permanent disposition.

(f) This section must be construed to protect fundamental liberty interests and shall not be interpreted to diminish or displace any greater protections afforded by the Constitution of the United States, the Constitution of Tennessee, or applicable federal law.

37-1-1005. Right to jury trial.

(a) In a proceeding in which the state seeks the termination of parental rights or any disposition that functions as a permanent severance of the parent-child relationship, a parent has the right to a trial by jury on all questions of fact.

(b) The right to a jury trial under this section must be exercised only upon the written election of the parent. The court must advise the parent of this right on the record at the earliest practicable stage of the proceeding.

(c) The jury must determine all factual issues, including but not limited to:

(1) Whether the factual allegations by the state are proven;

(2) Whether the state has met its burden of proof beyond a reasonable doubt; and

(3) Whether the alleged conduct constitutes grounds for termination under state law.

(d) Questions of law shall remain with the court.

(e) A verdict terminating parental rights requires a unanimous decision of the jury.

(f) Any waiver of the right to a jury trial must be made knowingly, voluntarily, and in writing, following an on-the-record colloquy by the court. A waiver shall not be inferred from silence, inaction, or the conduct of counsel.

(g) This section does not diminish the right to a bench trial where a jury trial is not elected or limit any greater jury-trial protections provided under the Constitution of the United States or the Constitution of Tennessee.

37-1-1006. Right to counsel and prohibition on unauthorized waiver.

(a) In a proceeding initiated by the state that may result in the removal of a child, restriction or suspension of parental custody or visitation, or termination of parental rights, a parent has the right to the assistance of counsel at all critical stages of the proceeding.

(b) The right to counsel attaches at the earliest of the following events:

(1) The filing of a petition or complaint seeking state intervention in the parent-child relationship;

(2) The execution or attempted execution of an emergency removal; or

(3) Any appearance by the parent before a court or administrative body concerning such matters.

(c) If a parent is indigent, then the court must appoint qualified counsel without delay. A proceeding affecting parental rights shall not advance until counsel has been appointed and afforded a reasonable opportunity to consult with the parent.

(d) A waiver of the right to counsel or of any due process right, including, but not limited to, the right to notice, the right to a hearing, the right to confrontation and cross-examination, the right to timely adjudication, or the right to appeal, is not valid unless:

(1) The waiver is made knowingly, voluntarily, and intelligently by the parent;

(2) The waiver is reduced to writing, specifically identifying the right or rights being waived, and signed by the parent; and

(3) The court conducts an on-the-record colloquy sufficient to establish that the parent understands the nature of the proceedings, the specific rights being relinquished, and the reasonably foreseeable consequences of the waiver.

(e) A waiver of any right protected by this part must not be executed, inferred, or implied by counsel, a guardian ad litem, a court officer, an agency representative, or any other person acting on behalf of the parent.

(f) Silence, inaction, failure to object, failure to appear without proper notice, compliance with services, or the conduct or omission of appointed or retained counsel do not constitute a waiver of the right to counsel or of any other due process right. A purported waiver obtained in violation of this section is void and has no legal effect.

(g) Counsel appointed or permitted to represent a parent under this section owes a duty of undivided loyalty to the parent and is not subject to removal, retaliation, or adverse appointment consequences for asserting constitutional rights, demanding evidentiary compliance, or challenging the sufficiency or legality of state action.

(h) An order entered in a proceeding conducted in violation of this section is subject to vacatur upon timely motion, without a showing of prejudice.

37-1-1007. Adjudication requirement - Prohibition on termination without prior lawful adjudication.

(a) A court shall not enter an order terminating parental rights, permanently transferring custody, or imposing any disposition that functions as a permanent severance of the parent-child relationship unless a prior adjudication has occurred in

strict compliance with this part and with all legislatively enacted time requirements and applicable rules of court governing adjudication, notice, and hearing timelines, which shall be construed to protect family integrity and prevent undue delay.

(b) A lawful adjudication under this section requires:

(1) Timely notice to the parent of the specific allegations asserted by the state;

(2) Representation by counsel pursuant to § 37-1-1006;

(3) A meaningful evidentiary hearing at which the state bears the burden of proof;

(4) The opportunity for the parent to confront and cross-examine adverse witnesses; and

(5) Written findings of fact and conclusions of law entered by the court.

(c) A termination of parental rights proceeding shall not be heard, commenced, or adjudicated unless:

(1) The adjudication described in subsection (b) has been completed in strict compliance with this part and all legislatively enacted time requirements and applicable rules of court; and

(2) A minimum post-adjudication period prescribed by law or rule for remedial opportunity has elapsed following the adjudicatory and dispositional findings, such that the state is required to prove alleged parental unfitness over time, and the parent is afforded a meaningful opportunity to remedy the conditions adjudicated.

(d) A termination of parental rights proceeding must not rely upon delay, obstruction, consolidation, or postponement of adjudication to satisfy or circumvent the requirements of this section.

(e) An adjudication must not be implied, presumed, deferred indefinitely, or satisfied through preliminary proceedings, shelter care hearings, emergency orders, compliance plans, or dispositional reviews. The absence of a timely and lawful adjudication bars any permanent disposition affecting parental rights.

(f) Proceedings for adjudication and proceedings for termination of parental rights must be distinct and sequential. A court shall not consolidate, merge, or conduct adjudication and termination proceedings simultaneously or in a manner that deprives the parent of meaningful notice, preparation, or the opportunity to contest the state's allegations.

(g) A lawful adjudication is a jurisdictional prerequisite to any termination proceeding. Any termination order entered without a prior adjudication that complies with this section is voidable as a matter of law.

(h) This section prevents the circumvention of due process through procedural delay, consolidation, or re-labeling of proceedings, and to ensure that a parent is not permanently deprived of parental rights without a full and fair adjudication of the state's claims.

37-1-1008. Emergency and ex parte removals.

(a) Emergency or ex parte removal of a child from a parent is permitted only as a narrowly tailored exception to the requirements of prior notice and hearing, and only under the conditions set forth in this section.

(b) A child shall not be removed pursuant to an emergency or ex parte order unless the sworn allegations, if proven, would constitute conduct sufficient to establish probable cause for a criminal offense involving abuse or neglect under title 39, chapter 15, part 4. The absence of filed criminal charges at the time of removal does not relieve the state of its obligation to meet the requirements of this subsection (b).

(c) An emergency or ex parte removal order must be supported by a sworn affidavit or testimony setting forth specific, particularized facts demonstrating:

- (1) An imminent and substantial risk of serious physical harm to the child;
- (2) That the alleged conduct satisfies the criminal law threshold described in subsection (b); and
- (3) That immediate removal is the least restrictive means available to prevent such harm.

(d) Generalized allegations, predictive risk assessments, poverty, noncompliance with services, or speculative harm are not a sufficient basis for emergency or ex parte removal.

(e)

(1) An emergency or ex parte removal order must include written findings by the court, entered contemporaneously with the order, expressly stating:

- (A) The specific facts relied upon;
- (B) The criminal offense for which probable cause exists; and
- (C) The reasons less restrictive alternatives were inadequate.

(2) Failure to enter findings as required by subdivision (e)(1) renders the order voidable as a matter of law.

(f)

(1) Following an emergency or ex parte removal, the court must conduct a prompt evidentiary hearing within a time certain, at which:

- (A) The state bears the burden of proof;
- (B) The parent has the right to counsel pursuant to § 37-1-1006;

and

(C) The court must determine whether continued removal is justified.

(2) An extension or continuance shall not be granted absent a showing of extraordinary circumstances.

(g) An emergency or ex parte removal does not serve as a substitute for adjudication and must not, by itself, support any permanent or long-term disposition affecting parental rights. All subsequent proceedings must comply fully with § 37-1-1004 - § 37-1-1007.

(h) This section must be construed consistently with the Fourth and Fourteenth Amendments to the Constitution of the United States and Article I, §7 and § 8 of the Constitution of Tennessee, and does not authorize removals based on civil standards divorced from criminal law principles.

37-1-1009. Federal funding conflicts and disclosure requirements.

(a) In a proceeding initiated by the state that may result in the removal of a child, restriction or suspension of parental custody or visitation, or termination of parental rights, the state must disclose, on the record and prior to any adjudicatory or dispositional hearing, the existence of any federal financial incentive applicable to the case.

(b) The disclosure required under subsection (a) must include, at a minimum:

(1) The categories of federal reimbursement, grants, or performance-based funding for which the state, county, court, agency, contractor, or service provider may be eligible as a result of the child's removal, placement, supervision, treatment, or adoption; and

(2) Whether the outcome sought by the state would increase, preserve, or otherwise affect eligibility for such funding.

(c) At the time of disclosure, the court must affirm on the record that the court has no institutional or financial interest in the outcome of the proceeding and that no funding consideration has influenced, or will influence, the court's determinations.

(d) The obligation to disclose under this section is a continuing duty and applies to any material change in funding eligibility or incentives arising during the pendency of the proceeding.

(e) A court shall not enter an order affecting parental rights if the disclosures required by this section have not been made. Failure to comply with this section constitutes structural error and renders any resulting order voidable as a matter of law.

(f) The rights and disclosures required by this section are not subject to waiver by a parent, counsel, or guardian ad litem, and failure to object must not be deemed consent.

(g) This section shall be construed to preserve judicial impartiality, prevent conflicts of interest, and ensure that decisions affecting family integrity are based solely on lawful evidence and constitutional standards, and not on financial considerations.

37-1-1010. Evidentiary protections and prohibited bases for termination.

(a) An order affecting parental rights must not be entered unless supported by competent, admissible evidence presented in a meaningful evidentiary hearing. Findings shall not be based on unsworn statements, proffers, summaries, or reports not admitted into evidence.

(b) A parent has the right to confront and cross-examine all adverse witnesses whose testimony or statements are offered to support removal, restriction of custody or visitation, or termination of parental rights. Hearsay shall not constitute the sole or primary basis for any finding required under this part.

(c) Expert testimony may be admitted only upon a showing of reliability and

relevance. Opinions based primarily on speculation, generalized risk assessments, predictive harm, or compliance metrics do not satisfy the state's burden of proof.

(d) A removal, restriction of custody or visitation, or termination of parental rights shall not be based solely or primarily upon any of the following:

(1) Poverty, homelessness, or economic hardship;

(2) A parent's disagreement with, or noncompliance with, recommended services absent proof of necessity and proportionality;

(3) Lawful exercise of constitutional rights, including the right to remain silent, to decline services, or to seek judicial review;

(4) Predictive harm, generalized risk factors, or speculative future injury;

(5) Prior involvement with the child welfare system that has not been proven relevant and admissible in the current proceeding; or

(6) The best interest of the child standard standing alone, without proof of statutory grounds and necessity under the required burden of proof.

(e) Material allegations supporting permanent dispositions must be corroborated by independent evidence. Uncorroborated accusations are not sufficient to meet the state's burden.

(f) An order affecting parental rights must include written findings of fact and conclusions of law identifying the specific evidence relied upon and the manner in which the state met its burden under this part.

(g) This section must be construed to ensure evidentiary rigor, protect against arbitrary decision-making, and prevent deprivations of family integrity based on speculation, administrative convenience, or non-evidentiary considerations.

37-1-1011. Remedies, enforcement, and preservation of rights.

(a) An order affecting parental rights entered in violation of this part is voidable

as a matter of law and subject to vacatur upon timely motion by an aggrieved parent or upon the court's own motion.

(b) A violation of § 37-1-1004 - § 37-1-1010 constitutes structural error. A showing of harmlessness or lack of prejudice is not required to obtain relief.

(c) This part does not limit, waive, or preclude any right, remedy, or cause of action available under the Constitution of the United States, the Constitution of Tennessee, or applicable federal or state law, including actions brought pursuant to 42 U.S.C. § 1983 or other civil rights statutes.

(d) Judicial, quasi-judicial, or administrative immunity shall not attach to acts taken in knowing violation of this part or in willful disregard of the rights secured herein, to the extent permitted by law.

(e) A parent whose rights are affected by a proceeding governed by this part has standing to seek enforcement of its provisions.

(f) This section shall be construed to ensure meaningful enforcement of the protections established by this part and to deter future violations of constitutional and statutory rights relating to family integrity.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it, and applies to proceedings initiated on or after that date and proceedings that are pending on

that date in which a final order terminating parental rights has not yet been entered.